

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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DANI APONTE and RICHARD CALDERON,

Plaintiffs,

FIRST AMENDED
VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK; NYPD SGT. JORGE
RODRIGUEZ, SHIELD # 02716; P.O. DAMIEN
BANKS SHIELD # 24355; P.O. JOHN DOES # 1-
10; the individual defendant(s) sued
individually and in their official
capacities,

Index No:153955/2013

Basis of Venue:

Occurrence of incident:
2383 2nd Avenue 1904, New
York, NY 10035

Defendants.

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Plaintiffs DANI APONTE and RICHARD CALDERON, by and
through their counsel Adams & Commissiong LLP, upon information
and belief, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort
action in which plaintiffs seek relief for the violation of
their rights secured by the laws of the State of New York; New
York State Constitution; 42 U.S.C. §§ 1983 and 1988; and the
Fourth, Fifth, and Fourteenth Amendments to the United States
Constitution. Plaintiffs' claims arise from an incident that
arose on or about February 3, 2012. During the incident, the
City of New York, and members of the New York City Police
Department ("NYPD") subjected plaintiffs to, among other things,

unlawful search and seizure; false arrest; unreasonable force; failure to intervene; assault and battery, unreasonable force, failure to intervene, and implementation and continuation of an unlawful municipal policy, practice, and custom; and respondeat superior liability. Plaintiffs seek compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

2. Within 90 days of the incidents alleged in this complaint, plaintiffs served upon defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damages or injuries claimed.

3. More than 30 days have elapsed since plaintiffs' demands and/or claims were presented to defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

4. This action is being commenced within one year and ninety days of the date of the occurrence herein.

5. Venue is proper in the Supreme Court of the State New York, New York County, because the acts in question occurred in the State of New York, New York County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, New York County.

PARTIES

6. Plaintiff Dani Aponte is a resident of the State of New York, New York County.

7. Plaintiff Richard Calderon is a resident of the State of New York, New York County.

8. The plaintiffs are Latino.

9. At all times alleged herein, defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiffs' rights as described herein.

10. At all times alleged herein, defendants Sgt. Jorge Rodriguez, Shield # 02716; P.O. Damien Banks, Shield # 24355; and P.O. John Does # 1-10 were New York City Police Officers employed with the 25th Precinct, located in New York County, New York or other as yet unknown NYPD assignment, who violated plaintiffs' rights as described herein.

11. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

12. On February 3, 2012, at approximately 5:30am at and in the vicinity of 2382 2nd Avenue, Apt. 1904, New York, New York, several police officers operating from the 25th precinct, including upon information and belief, defendants Sgt. Jorge Rodriguez, Shield # 02716; P.O. Damien Banks, Shield # 24355 and John Does # 1-10, at times acting in concert, and at times acting independently, committed the following illegal acts against plaintiff.

13. On February 3, 2012, at approximately 5:30 a.m., at and in the vicinity of 2382 2nd Avenue, Apt. 1904, New York, New York, several police officers operating from the 25th precinct, including upon information and belief, defendants Sgt. Jorge Rodriguez, Shield # 02716; P.O. Damien Banks, Shield # 24355 and John Does # 1-10, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs (or any third person) had committed a crime unlawfully entered 2382 2nd Avenue Apt # 1904, New York, New York.

14. The defendants, including defendants Sgt. Jorge Rodriguez, Shield # 02716; P.O. Damien Banks, Shield # 24355 and John Does # 1-10 broke into 2382 2nd Avenue Apt 1904, New York, New York.

15. If the defendant officers had a search warrant, it was issued upon the basis of extremely unreliable information, the unreliability of which was withheld from the issuing magistrate.

16. If the defendant officers had a search warrant, they obtained it by failing to properly supervise and verify the reliability of an informant against NYPD policy and procedures to ensure the reliability of the confidential informant and the confidential informant's information before obtaining the warrant.

17. While breaking into Apt 1904, the defendants, maliciously and unnecessarily broke down the door, entered the apartment with shields and helmets, and drew their firearms at plaintiffs and their minor children, and placed plaintiff's 12 year old daughter in handcuffs.

18. Once defendants entered 2382 2nd Avenue Apt 1904, New York, New York, the plaintiffs were not free to disregard the defendants' questions, walk away or leave the scene.

19. While inside Apt. 1904, the police officers, without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs (or any third person) had committed a crime falsely arrested plaintiff~~s~~

20. During the arrest of plaintiff Dani Aponte, the defendant officers, maliciously, gratuitously and unnecessarily, grabbed plaintiff Dani Aponte while in her nightgown, shoved her against a wall, twisted plaintiff's arms and placed excessively tight handcuffs on her wrists. Those defendants who did not touch plaintiff Dani Aponte, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

21. The police officers, searched plaintiff Dani Aponte and found no evidence of weapons, contraband, narcotics, or illegal activity on her person.

22. During the arrest of plaintiff Richard Calderon, police officers, maliciously, gratuitously and unnecessarily, grabbed plaintiff Richard Calderon while in his underwear, threw him to the ground, one of the officers place a knee in his neck, then twisted plaintiff Richard Calderon's arms and placed excessively tight handcuffs on his wrists. Those defendants who did not touch plaintiff Richard Calderon, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

23. The police officers, searched plaintiff Richard Calderon and found no evidence of weapons, contraband, narcotics, or illegal activity on his person.

24. Additionally, the police officers, unreasonably, unnecessarily, and retaliatory kept plaintiff in handcuffs while they searched the apartment.

25. While searching the apartment, the police officers, unreasonably, maliciously, and unnecessarily damaged plaintiffs' personal property, furniture and fixtures, including, but not limited to, televisions, music equipment, and other items.

26. Furthermore, during their search of the apartment, the police officers, unreasonably, maliciously, and unnecessarily stole and converted plaintiffs' personal property, including jewelry, and a laptop computer.

27. Thereafter, the police officers, transported plaintiffs to the 25th precinct, before transferring them to Manhattan Central Booking for further processing.

28. While plaintiffs were held at Manhattan Central Booking, plaintiffs were subjected to depraved, filthy, and inhumane conditions of confinement, including overcrowding.

29. The guards and personnel assigned to Central Booking looked the other way at these dangerous conditions, and ignored arrestees who sought their assistance.

30. While plaintiffs were incarcerated at the 25th precinct and Central Booking awaiting arraignment, the police

officers, pursuant to a conspiracy, falsely and maliciously told the New York County District Attorney's Office that plaintiffs had committed a crime; and based on the these false allegations the New York County District Attorney's Office initiated a prosecution against plaintiff Dani Aponte, under Docket Number 2012NY010884 and plaintiff Richard Calderon, under Docket Number 2012NY010883. Additionally based on these false allegations, New York City Administration for Children's services took plaintiffs' minor children and initiated a case.

31. After arraignment, Plaintiff Richard Calderon was held for approximately 5 days until bail was posted.

32. To cover up their misconduct, the police officers, intentionally, knowingly and purposely provided false statements and information to cause plaintiffs to be prosecuted.

33. The police officers, initiated the above-stated malicious prosecution(s) against plaintiffs.

34. The police officers, lacked probable cause to believe the above-stated malicious prosecution(s) could succeed.

35. The police officers, acted with malice to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution(s).

36. The above-stated malicious prosecution(s) caused a sufficient post-arraignment liberty restraint on plaintiffs.

37. The above-stated malicious prosecution terminated in plaintiff's favor when the case against plaintiff Dani Aponte's case was dismissed in its entirety on or about November 28, 2012 and Plaintiff Richard Calderon's case was dismissed in its entirety on or about September 28, 2012.

38. Because of this arrest, plaintiff Dani Aponte lost her job as a teacher.

FIRST CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)

39. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

40. Defendants unlawfully searched plaintiffs and their home without a warrant, or consent.

41. Accordingly, defendants are liable to plaintiffs for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM

(UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)

42. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

43. Defendants unlawfully searched plaintiffs and their home without cause, a warrant, or consent.

44. Accordingly, defendants are liable to plaintiffs for unlawful search and seizure under New York State law.

THIRD CLAIM

(ASSAULT)

45. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

46. Among other things as described above, defendants' search and seizure, battery, false arrest, and excessive use of force against plaintiffs placed them in fear of imminent harmful and offensive physical contacts.

47. Accordingly, defendants are liable to plaintiffs under New York State law for assault.

FOURTH CLAIM

(BATTERY)

48. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

49. Among other things as described above, defendants' search and seizure, false arrest, and excessive use of force against plaintiffs were illegal physical contacts.

50. Accordingly, defendants are liable to plaintiffs under New York State law for battery.

FIFTH CLAIM

(FALSE ARREST UNDER FEDERAL LAW)

51. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein

52. Defendants falsely arrested plaintiffs without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiffs had committed a crime.

53. Accordingly, defendants are liable to plaintiffs for false arrest under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SIXTH CLAIM

(FALSE ARREST UNDER STATE LAW)

54. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

55. Defendants falsely arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

56. Accordingly, defendants are liable to plaintiff for false arrest under New York State law.

SEVENTH CLAIM

(UNREASONABLE FORCE)

57. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

58. The individual defendants' use of force upon plaintiffs was objectively unreasonable.

59. The individual defendant officers did not have an objective and/or reasonable basis to use any degree of force against plaintiffs, since plaintiffs were unarmed, compliant, and did not resist arrest.

60. Those defendants who did not touch the plaintiffs, witnessed these acts, but failed to intervene and protect plaintiffs from this conduct.

61. Accordingly, the defendants are liable to plaintiffs for using unreasonable and excessive force, pursuant to 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

EIGHTH CLAIM

(FAILURE TO INTERVENE)

62. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

63. Defendants had a reasonable opportunity to prevent the violations of plaintiffs' constitutional rights, but they failed to intervene.

64. Accordingly, the defendants are liable to plaintiffs for failing to intervene to prevent the violation of plaintiffs' constitutional rights.

NINTH CLAIM

(MALICIOUS PROSECUTION CLAIM UNDER FEDERAL LAW)

65. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

66. The individual defendants are liable to plaintiffs for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiffs by knowingly, intentionally, and maliciously providing false statements (including signed complaints and police reports) to prosecutors and/or the court(s), which alleged plaintiffs had committed various crimes.

67. The individual defendants lacked probable cause to believe the above-stated malicious prosecution(s) could succeed.

68. The individual defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution(s).

69. The above-stated malicious prosecution(s) caused a sufficient post-arraignment liberty restraint on plaintiffs.

TENTH CLAIM

(MALICIOUS PROSECUTION CLAIM UNDER STATE LAW)

70. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

71. The individual defendants are liable to plaintiffs for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution(s) against plaintiffs by knowingly, intentionally, and maliciously providing false statements (including signed complaints and police reports) to prosecutors and/or the court(s), which alleged plaintiffs had committed various crimes.

72. The individual defendants lacked probable cause to believe the above-stated malicious prosecution(s) could succeed.

73. The individual defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution(s).

ELEVENTH CLAIM

(DENIAL OF FAIR TRIAL)

74. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

75. The defendants are liable to plaintiffs because they intentionally conspired to fabricate evidence against plaintiffs, depriving plaintiffs of liberty without due process of law.

76. Furthermore, the defendants violated the law by making false statements by drafting and/or signing a sworn criminal court complaint and false police reports.

77. Furthermore, the individual defendants violated the law by manipulating evidence to obtain a prosecution and unjust conviction, while performing the function of investigators.

78. The individual defendants were on notice that creating fabricated evidence is a clear violation of law because it well established that individuals who knowingly use false evidence at trial to obtain a conviction act unconstitutionally and is redressable in an action for damages under 42 U.S.C. § 1983.

79. The individual defendants are also liable to plaintiffs because they intentionally created false information likely to influence a fact finder's or jury's decision by, inter alia, forwarding false information to prosecutors, drafting and signing a sworn criminal court complaint and police reports, omitting and/or manipulating evidence, fabricating testimony and evidence, suppressing and concealing exculpatory material and evidence, and forwarding and presenting false information to a court thereby violating plaintiffs' constitutional right to a fair trial, and the harm occasioned by such an unconscionable

action is redressable in an action for damages under 42 U.S.C. § 1983.

TWELTH CLAIM

(PERSONAL PROPERTY DAMAGE)

80. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein. The defendants are liable for damage to the plaintiff's personal property, because during their illegal search of plaintiffs' home, defendants unreasonably, maliciously, and unnecessarily damaged plaintiffs' personal property, furniture and fixtures.

THIRTEENTH CLAIM

(CONVERSION)

81. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein. The defendants are liable for conversion of plaintiffs' personal property, because during their illegal search of plaintiffs' home defendants unreasonably, maliciously, and unnecessarily stole and converted plaintiffs' personal property.

FOURTEENTH CLAIM

(MONELL CLAIM)

82. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

83. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiffs.

84. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against plaintiffs: (1) unlawfully entering homes; (2) wrongfully arresting innocent persons in order to meet productivity goals; (3) wrongfully arresting individuals based on pretexts and profiling; (4) using unreasonable force on individuals; (5) fabricating evidence against innocent persons; and (6) retaliating against people who complain about police misconduct.

85. Upon information and belief, defendant City of New York, at all relevant times, was aware that the defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

86. Nevertheless, defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual defendants and improperly retained and utilized them. Moreover, upon information and belief, defendant City of New York failed to adequately

investigate prior complaints filed against the individual defendants.

87. Further, defendants City of New York was aware prior to the incident that the individual defendants (in continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

88. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual defendants, placing the defendant City of New York on notice of the individual defendants' propensity to violate the rights of individuals.

89. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, perjury, corruption, theft, selling narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state court and served time in federal prison. In 2011, Brooklyn

South Narcotics officer Jerry Bowens was convicted of murder and attempted murder in Supreme Court, Kings County, while under indictment for corruption and is presently serving a life sentence. In 2011, Police Officer William Eiseman and his subordinate Police Officer Michael Carsey were convicted of felonies in Supreme Court, New York County, for lying under oath, filing false information to obtain search warrants and performing illegal searches of vehicles and apartments. In 2012, New York City Police Officer Michael Pena was convicted in Supreme Court, New York County, of raping and sexually assaulting a woman at gunpoint and is presently serving a sentence of 75 years to life.

90. Additionally, the existence of the aforesaid unconstitutional customs and policies of profiling minorities, may be inferred from an analysis of the NYPD conducted by the New York Civil Liberties Union ("NYCLU"). The NYCLU's analysis revealed that more than 2 million innocent New Yorkers were subjected to police stops and street interrogations from 2004 through 2011, and that black and Latino communities continue to be the overwhelming target of these tactics. Nearly nine out of 10 stopped-and-frisked New Yorkers have been completely innocent, according to the NYPD's own reports.

91. In August 2009, Proffer Levine released a report entitled The Epidemic of Pot Arrests in New York City, which stated: Perhaps most appalling is who the police are arresting for marijuana possession. United States government studies have consistently found that young whites use marijuana at higher rates than do young blacks or Latinos. But the NYPD has long arrested young blacks and Latinos for pot possession at much higher rates than whites. In 2008, blacks were about 26% of New York City's population, but over 54% of the people arrested for pot possession. Latinos were about 27% of New Yorkers, but 33% of the pot arrestees. Whites were over 35% of the City's population, but less than 10% of the people arrested for possessing marijuana. In 2008, police arrested Latinos for pot possession at four times the rate of whites, and blacks at seven times the rate of whites.

92. Furthermore, documented civilian complaints about officer misconduct show that African Americans are the most likely targets of abuse, but their complaints are largely ignored. According to the City of New York's Civil Complaint Review Board's ("CCRB") Status Report, dated December and January 2010, in 2010 African Americans were overrepresented as alleged victims of police misconduct. Although making up only 23% of New York City's population, they are 58.5% of the alleged

victims in CCRB complaints. On the other hand, whites and Asians were a disproportionately low percentage of alleged victims.

93. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiffs as alleged herein.

94. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by plaintiffs as alleged herein.

95. The City's failure to act resulted in the violation of plaintiffs' constitutional rights as described herein.

FIFTEENTH CLAIM

(RESPONDEAT SUPERIOR)

96. Plaintiffs repeat and reallege all the foregoing paragraphs as if the same were fully set forth at length herein.

97. The individual defendants were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against plaintiffs, including falsely arresting, assaulting, and battering plaintiffs.

98. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, plaintiffs demands, damages in an amount which exceeds the jurisdiction of all lower Courts otherwise having jurisdiction, a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
August 6, 2013

ADAMS & COMMISSIONG LLP,
Attorney for Plaintiffs
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212-430-6590
martin@amcmlaw.com

By:


MARTIN E. ADAMS, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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DANI APONTE and RICHARD CALDERON,
Plaintiffs,
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VERIFICATION

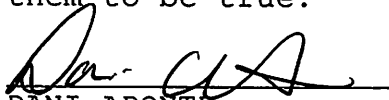
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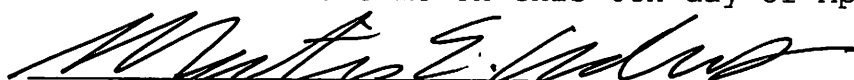
Defendants
----- X

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

Dani Aponte depose and say: I am the plaintiff in the
above-entitled action. I have read the annexed Summons and
First Amended Verified Complaint dated August 6, 2013 and know
the contents thereof. The same is true to the best of my own
knowledge, except as to matters therein stated to be alleged
upon information and belief and as to those matters I believe
them to be true.


DANI APONTE

Sworn to me before me on this 6th day of ~~April~~ ^{August}, 2013


Notary Public

I Richard Calderon depose and say: I am the plaintiff in
the above-entitled action. I have read the annexed Summons and
First Amended Verified Complaint dated August 6, 2013 and know
the contents thereof. The same is true to the best of my own
knowledge, except as to matters therein stated to be alleged
upon information and belief and as to those matters I believe
them to be true.


RICHARD CALDERON

Sworn to me before me on this 6th day of August, 2013


Notary Public